



Unsafe Building April 9, 2026

Meeting Metadata	Details
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Municipal Meeting Report: Unsafe Building Hearing Authority

Meeting Date: April 9, 2026

Body: Unsafe Building Hearing Authority

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** 00:00:04 Presiding officer Mayor Gretchen Cheeseman called the meeting to order, entering the Unsafe Building Law (IC 36-7-9) into the record for new cases set for hearing.
- **Attendance:**
 - **Present:** Gretchen Cheeseman (Mayor / Presiding Officer), Dan Rydenower, James Heimck, and Jeff Green.
 - **City Staff:** Rebecca Moon, Hannah Collins, Richard Rawlings (Administrators), Aubrey Christ (City Attorney), and Courtney Walker (Recording Secretary).

2. Preliminary & Procedural Business

- **Ceremonial Openings:** 00:02:17 All participants expecting to testify were sworn in collectively under oath by the administration.
 - **Approval of Minutes:** *None explicitly addressed in the provided transcript text.*
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3. Substantive Business & Board Action

- **00:02:51 Case 1: 117 East 7th Street (Rehab Order)**
 - **Sponsor / Presenter:** Robin Huffman (Estate Representative) / City Staff.
 - **Deliberation Summary:** Huffman stated the property is currently under contract with Middle America Homes, with closing expected at the end of the month after personal belongings are completely cleared out. Staff recommended a 30-day continuance to allow the new owner to appear.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the rehab order and continue for 30 days. Approved by Voice Vote.
- **00:05:22 Case 5: 1707 East Memorial Drive (Rehab Order)**
 - **Sponsor / Presenter:** Sarah Smith (Midwest Property Management) / City Staff.
 - **Deliberation Summary:** Smith reported that all repairs were completed except for reattaching gutters (scheduled for that day/tomorrow). Staff recommended affirming the order and continuing for 30 days to schedule a final inspection.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the order and continue for 30 days. Approved by Voice Vote.
- **00:07:45 Case 6: 1205 North Tilton Avenue (Rehab Order)**
 - **Sponsor / Presenter:** Bla1 Subtles (Blue Spruce Construction) / City Staff.
 - **Deliberation Summary:** Subtles reported that electrical work, drywall, and flooring under the furnace and water heater had been completed. The primary obstacle was difficulty getting in touch with the tenant to schedule the required municipal inspection.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the order and continue for 30 days for inspection. Approved by Voice Vote.
- **00:10:27 Case 7: 1720 West 7th Street (Demo Order - Continued)**
 - **Sponsor / Presenter:** Fernando Gutierrez (New Owner) / City Staff.
 - **Deliberation Summary:** Gutierrez stated he recently acquired the property and obtained a building permit on Monday. He requested 120 days (4 months) to complete self-cleanup and hire contractors for major trades (electrical, plumbing, roofing). Staff noted he followed through on prior communication.

- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 120 days (4 months). Approved by Voice Vote.
- **00:13:09 Case 15: 9006 South Beacon (Demo Order - Continued)**
 - **Sponsor / Presenter:** William Powers (Owner) / City Staff.
 - **Deliberation Summary:** Powers stated he is in the process of selling the house; if the sale falls through, he intends to demolish the structure himself to avoid high contractor costs.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days. Approved by Voice Vote.
- **00:16:02 Case 20: 426-428 West Howard Street (Demo Order - Continued)**
 - **Sponsor / Presenter:** [Here] Wyinners (Owner Representative) / City Staff.
 - **Deliberation Summary:** Wyinners detailed exterior repairs made (doors, siding, party board) and explained that foundation/structural issues discovered in the back wall require building a temporary sub-wall or consulting an engineer. Staff recommended obtaining a building permit and an engineering report.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days, requiring an engineering inspection report and a building permit. Approved by Voice Vote.
- **00:22:19 Case 21: 1022 East Kirby Avenue (Rehab Order - Continued)**
 - **Sponsor / Presenter:** [Here] Wyinners (Owner Representative) / City Staff.
 - **Deliberation Summary:** Discussion touched on exterior grounds cleanup and general maintenance for this property alongside the Howard Street case.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days. Approved by Voice Vote.
- **00:25:54 Cases 22 & 23: 1510 East McGalliard Road / East McGalliard Road Lot 3 (Demo Orders)**
 - **Sponsor / Presenter:** Jody Richards (Property Manager) / City Staff.
 - **Deliberation Summary:** Richards reported that illegal occupants were evicted via court order by March 15th. Four mobile homes (including lot numbers tied to the properties) are slated for total removal/demolition. Coordination with the gas company for meter removals is underway, requiring a 4-week lead time.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion for a 60-day continuance, requiring acquisition of demo permits and final inspection sign-off. Approved by Voice Vote.
- **00:31:45 Case 27: 1801 West 17th Street (Rehab Order - Continued)**
 - **Sponsor / Presenter:** Bill Bradcliffe (Representative for Jim Caner) / City Staff.
 - **Deliberation Summary:** Bradcliffe reported that previous tenant access issues have resolved as the tenants moved out. Two of three correction order items are

finished, and flooring replacement is underway.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Motion to continue for 30 days pending inspection.
Approved by Voice Vote.
- **00:33:06 Case 31: 4305 West Burton Drive (Rehab Order - Continued)**
 - **Sponsor / Presenter:** James Berton (Owner) / City Staff.
 - **Deliberation Summary:** Berton reported steady progress on garage rehabilitation (tie-back and siding/doors remaining). Staff confirmed positive inspection trends.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days pending inspection.
Approved by Voice Vote.
- **00:34:35 Case 34: 1211 South High Street (Rehab Order)**
 - **Sponsor / Presenter:** Nathan Duran (Owner) / City Staff.
 - **Deliberation Summary:** Duran stated the previous tenants caused a fire in the living room and abandoned extensive trash. Duran has evicted them and is currently clearing out the property before addressing structural and fire-damaged areas.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days, requiring a building commissioner inspection and necessary permits; failure to inspect incurs a \$150 fine. Approved by Voice Vote.
- **00:37:15 Case 37: 725 North Jefferson Street (Rehab Order - Continued)**
 - **Sponsor / Presenter:** Owner (Jefferson Street property) / City Staff.
 - **Deliberation Summary:** Owner reported that exterior repairs are nearly complete (about "a piece and a half" remaining), noting weather delays from high winds. Staff confirmed positive progress.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days pending inspection.
Approved by Voice Vote.
- **00:39:15 Case 39: 1723 South Madison Street (Rehab Order - Continued)**
 - **Sponsor / Presenter:** Lisa Brown (Prudent Representative) / City Staff.
 - **Deliberation Summary:** Brown reported that special-order siding is being installed incrementally and the interior has been cleared of junk. The project is navigating plumbing contractor searches and active building permits.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days pending inspection.
Approved by Voice Vote.
- **00:42:42 Case 40: 5 West Main Street (Rehab Order - Continued)**
 - **Sponsor / Presenter:** Owner / Jerry Den (Neighbor/Witness) / Daniel Fischer (Tenant) / City Staff.
 - **Deliberation Summary:** The owner stated he filed an eviction notice, but the court required a 90-day notice period making the effective move-out date June 2nd, after

which foundation-jacking and structural repairs can occur.

- **Item-Specific Public Input:**
 - **00:44:27 Jerry Den** (Neighbor/Witness) testified that the tenant acknowledged plans to move out to apartments near U-Haul.
 - **00:47:34 Daniel Fischer** (Tenant) disputed the landlord's claims, stating he has not been contacted for repairs, highlighting severe mold in the basement, a non-functional bathtub, and ongoing medical/disability needs while seeking affordable income-based housing.
- **Action & Vote Disposition:** Motion to continue for 60 days (extending past the June 2nd court date). Approved by Voice Vote.
- **00:59:21 Case 41: 800 East Memorial Drive (Rehab Order)**
 - **Sponsor / Presenter:** Sharon & Rudy Paris (Owners) / City Staff.
 - **Deliberation Summary:** Owners reported that structural porch damage occurred because a motorist drove through it at high speed without insurance. Repairs are roughly 80% complete.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to move the case to administrative enforcement. Approved by Voice Vote.
- **00:59:55 Case 42: 801 West North Street (Rehab Order - Continued)**
 - **Sponsor / Presenter:** Joseph Fleming (Owner Representative) / City Staff.
 - **Deliberation Summary:** Fleming reported cleanup is complete, bug/mold treatments are done, and all 9 apartments are vacant. Four apartments are being eliminated, reducing total density. Plumbing repairs from winter pipe bursts are prioritized ahead of electrical permit pulls.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to assess a \$150 fine for missing the prior inspection, combined with a 30-day continuance and mandatory inspection. Approved by Voice Vote.
- **00:10:31 Cases 44<U+2013>54: Walnut Street Mobile Home Park (Rehab & Demo Orders)**
 - **Sponsor / Presenter:** Chad Whipmore (Representative) / City Staff.
 - **Deliberation Summary:** Whipmore stated legal issues with Chris Love have been resolved, returning park properties to corporate control. In-house rehab crews started Monday. Four units are proposed for demolition (pending corporate approval), while others undergo systematic rehabilitation to generate rental income.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days, requiring four building permits for rehab units (Nos. 3, 9, 11, and 25), 50% completion progress at the next hearing, mandatory pre-hearing inspections, and a \$150 fine for uninspected units. Approved by Voice Vote.

- **00:10:47 Cases 55<U+2013>65: Jackson Street Mobile Home Park (Rehab & Demo Orders)**
 - **Sponsor / Presenter:** [Work Wreck] (Representative) / City Staff.
 - **Deliberation Summary:** Representative reported positive coordination with state mobile home inspectors, successful weed-mowing/brush removal, trash cleanups, and securing vacant units. Lot 16 is slated for demolition. Staff noted general property improvements.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 30 days, requiring a demolition permit for Lot 16, comprehensive unit inspections, a detailed timeline/schedule for remaining rehab units, and a \$150 administrative fine. Approved by Voice Vote.
 - **00:23:23 Case 43: 1132 North Warwick Road (Rehab Order - Expired)**
 - **Sponsor / Presenter:** Thomas Boyd (Owner) / City Staff.
 - **Deliberation Summary:** Staff noted that the case order officially expired in December, meaning the Authority lacks legal standing to act on the current docketed item without a retagging.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to dismiss the expired case (subject to future retagging if conditions warrant). Approved by Voice Vote.
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4. Open Public Comment / Citizen Forum

- **01:26:59 Unnamed Resident** (Neighboring 1001 East 29th Street / Case 29): Addressed ongoing neighborhood concerns regarding unzoned salvage operations, scores of inoperable vehicles (including a damaged limousine with flat tires), fluid leakage risks threatening local creeks, and animal infestations. Urged enforcement action or handoff to the city attorney. Board members discussed compliance tracking and agreed to execute an on-site vehicle operability and zoning inspection.
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5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **01:43:13** Board formally adopted staff recommendations and default findings for unrepresented properties on the docket (Cases 2<U+2013>4, 8<U+2013>14, 16<U+2013>19, 24<U+2013>26, 28, 30, 32, 33, 35, 36, 38, and 43). Approved by Voice Vote.
 - **Adjournment: 01:43:58** The meeting was officially adjourned.
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